

25VECV01637 25VECV01637

County: los-angeles

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Case Number: 25VECV01637 Hearing Date: August 31, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Brenna

Janette Moore,

Plaintiff,

v.

Toyota

Motor Sales U.S.A., Inc.,

Defendant.

Case Number Department

25VECV01637 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

to Compel Vehicle Inspection

[THE
FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On or about May 13, 2023, Plaintiff Brenna Janette Moore ("Plaintiff") leased a 2023 Lexus RX (the "Vehicle"). (Complaint ¶ 8.) The Vehicle was defective. (Complaint ¶ 10.)

On March 24, 2025, Plaintiff filed a complaint against Defendants Toyota Motor Leases U.S.A., Inc. and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act -breach of express warranty; (2) violation of Song-Beverly Act - breach of implied warranty; and (3) violation of the Song-Beverly Act section 1793.2.

On April 21, 2025, Plaintiff filed an amendment to complaint identifying Defendant Toyota Motor Leases U.S.A., Inc.'s correct name as Toyota Motor Sales U.S.A., Inc.

On April 15, 2026, Defendant Toyota Motor Sales U.S.A., Inc. ("Defendant") filed a motion to compel vehicle inspection (the "Motion"). On August 18, 2026, Plaintiff filed an opposition. On August 24, 2026, Defendant filed a reply.

II.

DISCUSSION

Defendant moves to compel Plaintiff to produce the Vehicle for an inspection. (Motion p. 2.)

In opposition, Plaintiff argues the Motion is untimely because Defendant filed it more than 45 days after Plaintiff served Defendant with objections. (Opposition pp. 4-5.)

In

reply, Defendant argues the 45-day deadline did not begin to run because Plaintiff's responses contained only unverified objections and the deadline only begins to run upon the receipt of verified responses. (Reply pp. 6-7.)

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand."¿ (Code Civ. Proc. § 2031.310, subd. (c).)

On July 16, 2025, Defendant served Plaintiff with the Notice of Vehicle Inspection (the "Notice") by electronic service. (Critchlow Declaration ¶ 2.) The Notice set the inspection for October 16, 2025. (Crichlow Declaration ¶ 2.) On October 9, 2025, Plaintiff served Defendant with objections to the Notice by electronic mail. (Crichlow Declaration ¶ 3; Ex. B pdf p. 21.)

Forty-five days, plus two court days for electronic service, after October 9, 2025, was November 25, 2025. Defendant filed the Motion on April 15, 2026.

Defendant cites *Golf & Tennis Pro Shop, Inc. v. Superior Court* ("Golf & Tennis") (2022) 84 Cal.App.5th 127, 135 to support its argument that unverified objection-only responses do not start the 45-day clock. (Reply p. 6.)

In *Golf & Tennis*, the responding party served unverified responses containing substantive responses and objections on February 5, 2021. (*Golf & Tennis*, supra, 84 Cal.App.5th at p. 132.) The propounding party received verifications on March 17, 2021. (Id.) On May 5, 2021, the propounding party filed a motion to compel further responses. (Id.) The responding party argued the propounding party waived its right to compel further responses because the 45-day period began on February 5, 2021. (Id. at p. 134.) The trial court agreed and found it had no jurisdiction to consider the motion. (Id.) The Court of Appeal noted that "[t]he issue of whether interrogatory responses consisting of both unverified factual responses and

objections start the 45-day clock under section 2033.300, subdivision (c) is, to our knowledge, a question of first impression . . .” (Id.) The Court noted that “if responses are not verified, the clock cannot begin to run.” (Id.) The Court further noted that “objections need not be verified under oath” and “we can ascertain from the inclusion of the qualifying word ‘only’ before the word ‘objections’ that a response which consists of both objections and responses must be verified, the only exception to this requirement is a response that contains nothing but objections.” (Id. at pp. 135-136.) The Court also noted that because the responses contained substantive responses and objections, they had to be verified. (Id. at p. 136.) Finally, the Court stated that it left “for another day the possibility of an ‘absurd result,’ as the trial court put it, if there is no time limit on a motion to compel involving objections.” (Id.) Thus, the court in *Golf & Tennis* explicitly did not consider the issue here, whether service of objection-only responses signed by counsel start the 45-day period.

Parties are required

to sign responses to a demand for inspection under oath, unless the responses contain only objections. (Code Civ. Proc., § 2031.250, subd. (a).) If the responses contain only objections, the attorney for the responding party must sign the response. (Code Civ. Proc., § 2031.250, subd. (c).)

The 45-day time limit

begins upon “service of the verified response . . .” (Code Civ. Proc., §, 2031.310, subd. (c).) A reasonable interpretation of section 2031.310, subdivision (c) is that the 45-day time limit begins to run either when a party is served with substantive responses, signed by the other party, or responses containing objections, signed by counsel.

Thus, Defendant’s Motion is untimely.

Defendant requests \$750 in monetary sanctions against Plaintiff and Plaintiff’s counsel. (Motion p. 2.) Defendant has not successfully moved to compel further responses. Thus, Defendant’s request for sanctions is denied. (Code Civ. Proc., § 2031.310, subd. (h).)

III.

CONCLUSION

For the foregoing reasons, the Motion is denied
as untimely.

Dated: August 28,
2026 _____ Hon.
Eric Harmon

Judge of the Superior Court